		Defendant is ORDERED to pay $1,250 in sanctions to Plaintiff within 20 days. (See Code Civ. Proc., §§ 2023.010, 2023.030, 2030.290, subd. (c) and Cal. Rules of Court, rule 3.1348.) Plaintiff to give notice. **MOTION 6** Plaintiff Jean Sommfield's unopposed motion to compel defendant Cushman & Wakefield U.S., Inc. to provide responses to Plaintiff's Requests for Production of Documents, Set One; and for monetary sanctions (ROA No. 117) is GRANTED. The party who fails to respond waives any objection to the demand, including one based on privilege or on the protection for work product under Section 2018(a) of the Code of Civil Procedure. (Code Civ. Proc. § 2031.300, subd. (a).) When the party to whom the demand is directed fails to respond, the demanding party may move for an Order compelling a response and for monetary sanctions. (Code Civ. Proc., § 2031. 300, subd. (b).) The motion has no deadline nor a requirement to meet and confer before filing the motion. The court "shall" impose a monetary sanction against the losing party on a motion to compel unless it finds that party acted "with substantial justification" or other circumstances render the sanction "unjust." (Code Civ. Proc., § 2031.300, subd. (c).) Here, Plaintiff properly served Requests for Production of Documents, Set One, on Defendant on 6/4/25. (Wolf Decl., ¶ 2.) Defendant never served responses despite promises to "have the discovery issues resolved." (Wolf, Decl., ¶¶ 6-7.) Defendant Cushman & Wakefield is ORDERED to provide verified responses, without objection, to Plaintiff's Requests for Production of Documents, Set One, along with all responsive documents, within 20 days. Defendant is ORDERED to pay $1,250 in sanctions to Plaintiff within 20 days. (See Code Civ. Proc., §§ 2023.010, 2023.030, 2031.310, subd. (c) and Cal. Rules of Court, rule 3.1348) Plaintiff to give notice.
11	***26-01575242*** ***Yes Online Inc. vs. ProTab Laboratories***	**Order to Show Cause re: Preliminary Injunction** The Order to Show Cause Re: Preliminary Injunction is discharged. The temporary protective order is dissolved and the Court, in its discretion, declines to enter a preliminary injunction. Plaintiff has failed to provide admissible evidence of any harm beyond the pecuniary losses sought in the Complaint. Injunctions are rarely granted where damages provide an adequate remedy. (See *Thayer Plymouth Ctr., Inc. v. Chrysler Motors Corp.*

		(1967) 255 Cal.App.2d 300, 307; Code Civ. Proc., § 526(a)(4)-(5) [(4) When pecuniary compensation would not afford adequate relief. (5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief].) Plaintiff relies upon the declarations of Sophia Anderson and Alex Rios to establish Defendant may be liquidating assets which could be used to satisfy any future judgment against Defendant in this action. Thus, Plaintiff claims an injunction is necessary to prevent Defendant from becoming insolvent during the pendency of this case. However, the references to communications with Ricardo Perez are inadmissible hearsay and the photographs cannot be authenticated because Anderson must rely on Perez's hearsay assertions as authentication. (Evid. Code, § 1200(a)-(b).) Plaintiff's inability to obtain Perez's cooperation does not relax the evidentiary standards. Thus, the Court cannot consider any evidence from Perez. Plaintiff's remaining evidence only demonstrates a possibility that Defendant is struggling financially. Anderson's conversations with Defendant's employees and counsel's declaration listing other actions against Defendant does not demonstrate injunctive relief is necessary. Thus, the Court finds Plaintiff has failed to show the relative harms favor issuing an injunction.
12	***24-01376026*** ***Zavala vs. General Motors LLC***	**Motion for Attorney Fees** Plaintiff's Motion for Attorney Fees is DENIED. The Court intends to enter an order of dismissal at the hearing. The Court has observed a trend in lemon law cases, nearly all of which settle before trial, which is absent from other civil litigation. The plaintiff files a notice of settlement of the entire case without disclosing to the Court any terms other than whether the settlement is unconditional or conditional, and then fails to follow through with filing of a request for dismissal, later filing a motion for attorney fees on grounds the parties agreed the Court would decide the issue of attorney fees and costs as part of their purported settlement. Under the facts of this case, this approach has no basis in law. "If an entire case is settled or otherwise disposed of, each plaintiff or other party seeking affirmative relief must immediately file written notice of the settlement or other disposition with the court . . . ." (Cal. Rules of Court, rule 3.1385(a)(1).) "Except as provided in (c) [conditional settlement] or (d) [compromise of claims of a minor or disabled person], each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case. If the plaintiff or other party required to serve and file the request for dismissal does not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed." (Id., rule 3.1385(b).)